

ADDRESS
OF
HON. THEODORE ROOSEVELT

DELIVERED

AT BOSTON, MASS.

SATURDAY, APRIL 27, 1912



PRESENTED BY MR. REED
APRIL 29, 1912.—Ordered to be printed

62D CONGRESS {
2d Session }

SENATE

{ DOCUMENT
No. 616 }

ADDRESS
OF
HON. THEODORE ROOSEVELT

DELIVERED
AT BOSTON, MASS.
SATURDAY, APRIL 27, 1912



PRESENTED BY MR. REED
APRIL 29, 1912.—Ordered to be printed

WASHINGTON
GOVERNMENT PRINTING OFFICE
1912

The Project Gutenberg eBook of Address of Hon. Theodore Roosevelt, delivered at Boston, Mass., Saturday, April 27, 1912

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Address of Hon. Theodore Roosevelt, delivered at Boston, Mass., Saturday, April 27, 1912

Author: Theodore Roosevelt

Release date: May 15, 2022 [eBook #68081]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: Government Printing Office, 1912

Other information and formats: www.gutenberg.org/ebooks/68081

Credits: Donald Cummings and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK ADDRESS OF
HON. THEODORE ROOSEVELT, DELIVERED AT BOSTON, MASS.,
SATURDAY, APRIL 27, 1912 ***

Transcriber's Note: The cover image was created from the title page by the transcriber and is placed in the public domain.

62D CONGRESS }
2d Session }

SENATE

{ DOCUMENT
{ No. 616

ADDRESS
OF
HON. THEODORE ROOSEVELT

DELIVERED

AT BOSTON, MASS.

SATURDAY, APRIL 27, 1912



PRESENTED BY MR. REED

APRIL 29, 1912.—Ordered to be printed

WASHINGTON
GOVERNMENT PRINTING OFFICE
1912

ADDRESS OF HON. THEODORE ROOSEVELT.

PRINCIPLES, NOT PERSONALITIES, AT STAKE.

My friends and fellow citizens, men and women of Massachusetts, men and women of Boston, I am glad indeed to be in your old historic State, your old historic city, this evening to plead for a cause which is preeminently the cause for which Massachusetts has stood throughout her existence as a colony and as a Commonwealth. [Cheers.] And friends—friends, I shall make my appeal to you in the name of every man and every principle for whom and for which Massachusetts has stood in the heroic days of the past. [Applause and cheers.]

Now, friends, last night I felt obliged to answer at length the attacks made upon me by Mr. Taft, but I do not wish this contest to be put upon the basis of a contest of personalities [Good! good! and cheers] between myself and Mr. Taft, and to-night I shall only allude to Mr. Taft just as far as it is necessary for me in order to illustrate the principles for which he and I respectively stand. [Applause.]

FIGHTING FOR EVERY GOOD CITIZEN.

And those allusions I shall make right at the outset, so that I can get down to the part of my speech in which I shall strive, however feebly, to put before you the principles which I think are at stake in this contest. For mind you, friends, I hold that this is infinitely more than a mere faction fight in the Republican Party. [A voice: “That’s where you’re right.”] I hold that this is infinitely more than any ordinary party contest, for I claim that we who stand for the principles of progressive Republicanism [applause and cheers]—that we who stand for making the principles of Abraham Lincoln living principles applied to the living issues of to-day—I hold that we are fighting not only for every good Republican, but for every good citizen in the United States, whoever he may be. [Cheers.]

And now at the outset, to dispose of the only matters that I have to take up in connection with Mr. Taft, I am more fortunate than Mr. Taft in my friends. [A voice: "You bet your life." Cheers.]

WILLING TO LOSE WITH A GOOD MAN.

When Mr. Taft came here on Thursday and I came here on Friday, Mr. Taft came here having lost the State of Illinois; I came here having lost the State of New Hampshire. [Laughter.] In Illinois Mr. Taft's chief lieutenant had been Mr. Lorimer. [Hisses.] In New Hampshire my chief supporter, chief lieutenant, had been Gov. Bass. [Great applause.]

And Mr. Taft came here to explain that he didn't like Mr. Lorimer [laughter and applause], having kept his dislike strictly private and confidential [laughter] until Mr. Lorimer lost out in Illinois. [Laughter.]

And I came here to say that, win or lose, I am with Gov. Bass every time, and that I count it the highest privilege to have had him as my champion, and I would rather lose with him than win with the forces allied against me. [Great applause and cries of "Bully."]

FOUGHT LORIMER IN ILLINOIS.

Now, just one more moment about Mr. Lorimer.

I know his record well. Mr. Taft was originally, a year and a quarter ago, against Mr. Lorimer, and at that time he requested me not to assault Mr. Lorimer in public for fear it would help Mr. Lorimer. [Laughter.]

And accordingly I kept quiet for several months, until I became convinced that the assault against Mr. Lorimer was going on with such excessive secrecy [laughter] that neither Mr. Lorimer nor any of his friends knew that there was an assault at all. [Laughter.] And then I took up the cudgels that I had dropped and I attacked Mr. Lorimer again. [Applause.] And I didn't attack him in Massachusetts after the Illinois primary; I attacked him in Illinois before the Illinois primary. [Applause.] I was informed before I went there that I ought not to attack Mr. Lorimer because he had many friends, some of whom "intended to vote for me," and that I would alienate their support. And I answered to them that I would rather

lose every delegate in Illinois than by silence connive at the wickedness of which Mr. Lorimer had been guilty.

And I fought it out fair and square on that issue from one end of Illinois to the other. [A voice: "You did."] And I won. [Applause.]

And I got every delegate in Illinois excepting two, the two from the district which Mr. Lorimer carries in his waistcoat pocket, and those two are for Mr. Taft. And, friends, it would not have been possible for me to have supported Mr. Lorimer at all—to have acquiesced in his support of me; but if it had been, and I had been going to repudiate him, I would have repudiated him before the Illinois primary and not afterwards. [Applause.]

THE MAN FOR THE BOSSES.

I have got a couple of columns arranged parallel here, one containing a dozen of my representative supporters and the other containing the dozen foremost supporters of Mr. Taft.

There has been a question raised by Mr. Taft as to whom the bosses were for. I will read you these two lists, and I will ask you to judge for yourselves. [A voice: "Exactly." Laughter.] I will read you—[pounding at entrance]—there seem to be some gentlemen who would like to come in. I will read you the dozen of my supporters first: Gov. Hadley, Gov. Bass, Gov. Stubbs, Gov. Johnson, Senator Beveridge, Senator Clark, Senator Bristow, Frank Heney, Gifford Pinchot, Mr. Garfield, Judge Ben Lindsey, Jacob Riis.

[A voice: "How about Perkins?"]

Perkins? He is for me. You can't—I will tell you. Wait a minute. You can't put a question to me that it will embarrass me to answer for one moment. [Great applause. A voice: "Go to him! Go to him!"]

RECORD IS OPEN TO ALL.

Wait a moment. I know that kind well. And you can guarantee that any supporter of mine comes out in the open and supports me. [Applause.] And you can guarantee also that after he has supported me, and I have accepted

his support, I won't repudiate him afterwards. [Great applause. A voice: "That is a square deal."]

And finally, you can guarantee this, that you can search from the top to the bottom of my record in the past and of my record in the future and you will never find that I have done or am doing or ever shall do for Mr. Perkins or for any other human being [applause]—wait a minute—or for any other human being one thing that I wouldn't tell to this audience in its entire details. [A voice: "We believe it." Applause.]

[Voices: "Put him out."] Not a bit. I am glad to have him stay in. Don't put him out. [Applause.]

HISSES ON THE BOSSES.

And now I have given you the names of my supporters. Here are the names of a dozen representative supporters of Mr. Taft: Senator Lorimer [hisses], Senator Penrose [hisses], Senator Gallinger [hisses], Senator Guggenheim [hisses], Senator Aldrich [hisses], Senator Stephenson [hisses], Mr. Kealing of Indiana [hisses], Mr. Barnes of New York [hisses], Mr. Cox of Ohio [hisses], Mr. Cannon [hisses], Mr. Ballinger [hisses], and finally, to balance Frank Heney in California, Mr. Patrick Calhoun [hisses], whom Frank Heney tried to put into the penitentiary.

Now, friends, Mr. Taft has said that I have accepted the support of bosses. So I have, when they went my way; but I never went their way. [Applause.] Either they had to go my way or we parted company. [Applause.]

Understand me, friends, and make no thought of Mr. Taft. I think he means well, but he means feebly, and he is surrounded by men who are neither well meaning nor feeble. [Applause.]

And now, friends, that is all I have got to say of the personalities in this contest. I have not been interested in them in any shape or way. I have no personal feeling whatever in the matter. I will support any man as long as that man renders service to the people of the United States. [Great applause and cheers.] And when he ceases rendering service I shall cease to support him. [Great applause.]

APPEAL TO THE PATRIOTS.

And now, friends, to you men and women of Massachusetts, I wish to make as strong an appeal as I know how. I come from another State. I have no New England blood in me, but nine-tenths of the men in our nation's past to whom I have looked up most have been men of New England blood. [Cries of "Hear! Hear!" and applause.] And I ask Massachusetts now to stand as Massachusetts has ever stood, to stand in the van of the forward movement and not to be dragged reluctantly onward behind the other States that go forward. [Applause.]

Massachusetts stood by Abraham Lincoln. [Applause.] Massachusetts gave her mighty support to the rail splitter from Illinois when he announced as his cardinal doctrines the right of the people to rule, and their good sense which would so guide them as to bring nearer the day when social and industrial justice should prevail in this Republic of ours. [Applause.]

THE REAL KIND OF FIGHT.

And I ask Massachusetts to support us in this campaign, not because it is easy, but because it is hard. [Applause.] I appeal to you because this is the only kind of a fight worth going into, the kind of fight where the victory is worth winning and where the struggle is difficult.

Here in Massachusetts, as elsewhere, we have against us the enormous preponderance of the forces that win victory in ordinary political contests. [A voice: "They won't do it this time."]

We have against us 95 per cent of the old regular political leaders. We have against us 95 per cent of the great corporations, which either legitimately fear that we would not tolerate their benefiting by privilege or else which are merely panic-struck and fail to realize that we will do absolute justice—just as much justice to the big man as the little man, but no more. [Cheers.]

SILK STOCKINGS AGAINST HIM.

Friends, we have against us also, I am sorry to say, 95 per cent of the respectable, amiable, silk-stocking vote. [Laughter.]

And it is amusing to see how exactly the conditions now parallel the conditions 55 years ago, when Abraham Lincoln was making his fight for the Union and for freedom.

After his defeat by Douglas in 1858, in November of that year, he wrote a letter to a friend, dating the letter at Springfield, Ill. It's a letter I should like to have framed at this moment in every house in the Back Bay. [Laughter.] He said:

In the late contest we had with us a considerable proportion of the plain Democracy, but we lost almost all the old silk stocking, exclusive Whigery. I do not mean that we lost all the Whigs, but only those of the nice, exclusive, silk-stocking type. [Laughter.]

Now that was written by Abraham Lincoln 54 years ago, and it has just happened in your own city, and in mine, and in the country generally at the present moment.

In consequence, friends, we have against us the money; we have against us the politicians; we have against us every newspaper that can be reached or controlled [hisses] by the money power [cries of "right," and applause]; we have against us the timid silk-stocking element—understand, not the silk-stocking man who feels competent to hold his own in the turmoil of actual life, not the silk-stocking man who is content to go out into the world and take his chances as any other man takes his.

We have got that man with us. We have got that man with us. [Applause.] We have against us only the silk-stocking man who is not quite confident enough in himself to believe in himself, who is not quite confident enough in himself to believe that he can hold his own with the rest of his fellow-Americans without advantage on his part. [Applause.]

We have these men that I have spoken of against us, and we have not got anybody with us except the people. [Great applause.] And on next Tuesday I want the people—I want you—to go to the polls and vote the same way you shout. [Cries of "you bet, you," and applause.]

In Massachusetts, as in Illinois, and as in most other States this year, it is such a contest in the civic field as you saw in the military field in 1775 and 1776.

It is a contest between the Minute Men and the mercenaries. [Applause]. And I want to show that in civic life you are competent to do the work that your forefathers have done; done with honor in the past. [Applause.]

LOWELL'S PROPHECY.

Now, friends, there has been an element of comedy to me in being held up in Massachusetts as an anarchistic agitator, when all that I have been doing has been to try to reduce to practice in the present day what the greatest men of Massachusetts have preached in past time. [Applause.]

I have got here, and I am going to read to you, just a few lines from Lowell and then two lines from Emerson—Lowell's being written nearly 60 years ago and Emerson's 50 years ago. Lowell's run:

New times demand new measures and new men;
The old advances and in time outgrows
The laws that in our fathers' day were best.
And doubtless after us some purer scheme will be
Shaped out by wiser men than we,
Made wiser by the steady growth of truth.
My soul is not a palace of the past,
Where outworn creeds like Rome's great Senate quake,
Hearing afar the vandals' trumpet hoarse
That shakes old systems with a thunder fit.
The time is ripe and rotten ripe for change. [Applause.]
Then let it come; I have no dread
Of what is called for by the instinct of mankind.

[Cries of "Good!"]

Friends, that is what Lowell wrote in 1856. It is what we could put on our banners now in 1912.

And I appeal to the Massachusetts of Lowell's time, to the Massachusetts that believed in the Bigelow papers, to the Massachusetts that sent young Lowell and Shaw, that sent Hallowell and so many of your people to the front in the Civil War.

I appeal to that Massachusetts to stand loyal now to the memories of Massachusetts' great past.

And now just wait—only two more lines of poetry. One of the curious traits of many of our good friends who are at the moment our opponents is that they are entirely willing to pay heed to the loftiest democratic sentiments if you will only keep them as sentiments and not try to reduce them to prose.

EMERSON AND THE PEOPLE.

I think I could get every worthy citizen of the Back Bay who at present feels the deepest distrust of us to applaud with tepid decorum [laughter] the following two lines of Emerson, provided only that I merely read them, in the course of a lecture on Emerson, and did not ask to translate them into action. [Laughter and applause.] The lines are:

For fishers and choppers and plowmen
Shall constitute a State.

He is describing the birth of Massachusetts, the birth of the United States, and he describes this country as being foreordained through the ages to show the kings, the aristocracy, the powers of privilege in the Old World, that here in the New World we could have a true and real democracy, a democracy where fishers and choppers and plowmen constitute a State. [Applause and cheers.]

As I say, friends, I could get decorous applause in any part of the Back Bay for that sentiment so long as I treated it purely as poetry of the past and not as politics of the present. [Applause.]

“THE MOB” WHO RULE.

But when I ask that the choppers, the plowmen, the fishers be given the absolute, the real control over their Government: when I ask that the farmers, the factory workers, the retail merchants, the young professional men, the railroad men, all the average citizens, be given the real control of this Government of theirs, be given the right to nominate their own

candidates, be given the right to supervise the acts of all their servants—the minute I do that, I am told that I am appealing to the momentary passion of the mob [laughter and applause], that fishers and choppers and plowmen are all right in poetry but when I try to put them into politics they become a mob cursed with an inability to act except under the impulse of momentary passion. [Laughter and applause.]

Now, friends, in my life, according to the strength that has been given me, I have always striven measurably to realize every ideal I have ever possessed, and I hold with deepest conviction that there is nothing worse in any man than to profess a high ideal as a mere matter of intellectual pleasure and in practice to make no effort to realize that ideal. [Applause.] I hold that it is discreditable to us as a people, discreditable to you of Massachusetts, if you praise Emerson's and Lowell's lines in the abstract and fail to do your best to endeavor actually to realize them in the present. [Applause.]

THE PEOPLE NO JUDGES.

All I am trying to do is to practically put into effect now in America, in 1912, the principles which your great leaders in Massachusetts, your great statesmen of the past, your great writers, your poets of the past, preached 30 and 50 and 70 years ago. [Applause.] That is all that I am trying to do.

And, friends, I now wish to put before you just what I mean by one of my proposals which has attracted the most criticism, and the people will catch up with it in the end.

In different parts of this Union, in different States, we have had very different qualities of public service. Nowhere have the differences been greater than in the judiciary.

MASSACHUSETTS JUDGES GOOD.

Here in Massachusetts you have had, I believe, a very unusually high quality of service from your judges. [Applause.]

When I was President, one of the revolutionary things that I did, of which you have heard so much, was, without any precedent—to put on the

Supreme Court of the Nation two judges from Massachusetts. [Applause.]

It was revolution; it had never been done before, but I should not think that Massachusetts would attack me because of it. [Laughter and applause.] I put on those two men—one of them Mr. Moody, my Attorney General [applause], because I had become convinced from my association with him that he not only knew law but knew life [applause], and that he had a realization of the needs and of the ideals of the great majority of his fellow citizens, the men and women who go to make up the average of the citizenship of the United States.

I put on Mr. Holmes, then chief justice here [applause], because studying his decisions I had grown to feel that he, too, sympathized with the American people, and, what was even more important, realized that the American people must decide for themselves, and not have anyone else decide for them, what their ideas of fundamental justice, as expressed in law, ought to be. [Applause.]

THE BAY STATE EXAMPLE.

And when I made my Columbus speech the State that I held up as an example to other States in the matter of the treatment of its judiciary was Massachusetts. [Applause.] Now, from reading the Massachusetts papers you would have thought that I was holding up the Massachusetts courts to obloquy.

I was holding them up for imitation elsewhere and I was advocating that in other States you should exercise the same type of supervision over your courts as Massachusetts has exercised.

But that was not all. I am dealing not with Massachusetts only; I am dealing with the 40 or 50 Commonwealths that go to make up this country as a whole.

THE TRAITOR JUDGES.

In some of these Commonwealths there have been put on the bench judges who have betrayed the interests of the people. [“Right!”]

If you doubt my words, you study the history of the cases in California in which Frank Heney was engaged, you study the history of the cases in Missouri in which Folk and Hadley were engaged. In those two States, gentlemen, I would have gone to any necessary length to take off the bench the judges who had betrayed the interests of justice and of the plain people. [Applause.]

In certain other States, my own State of New York, the great State of Illinois, we were fronted with an entirely different situation. In those States, as far as I know, there was no trouble with the judges being corrupt.

In New York I know that the court of appeals is composed of upright, well-meaning men.

DO NOT KNOW VITAL NEEDS.

But the courts in those States have been composed of men who know nothing whatever of the vital needs of the great bulk of their fellow Americans, and who, unlike your courts in Massachusetts, have endeavored to impose their own outworn philosophy of life upon the millions of their fellow citizens.

Now, I want to give you certain examples, concrete cases of just what I mean, because I have always found that a concrete case explains my position better than a general statement.

Almost as soon as I left Harvard I went into the New York Legislature. And my education began. [Laughter.] Now, I did not come to my present position as a result of study in the library, in the closet.

I came to my present position as the result of living in a world of men. It is because I have associated with them, I have worked with them, and I know my fellow Americans in many a different part of this Union and in all grades of life. [Applause.] I have worked with them. [Applause.]

TO THE MEN OF THE WEST.

Gentlemen, I am just going to give these one or two examples just to show you what I mean; that is all. For instance, I lived out West, in the cow country, quite a time, the short-grass country [laughter], and we would ship

trainloads of cattle East. I and three or four other men who were going would go in the caboose at the end of the cattle train.

If the train stopped we would jump out with our poles, and we would run up along the length of the cars to poke up the cattle that had lain down, because if we let them lie down the others would trample them to death.

And usually about the time we got near the engine the train would start again. Then we would have to climb up on the first car and dance along back from car to car until we got to the last car and climb down to the caboose.

KNOWS THE BRAKEMAN.

Now, once or twice I had to perform that voyage in a late fall or early winter night with snow on the roofs of the cars and the wind blowing, and I was thoroughly contented when it was through.

And now, friends, when a workman's-compensation act comes up and the question arises whether a brakeman, a switchman, any man of the kind should be compensated for the loss of life or limb in taking charge of the trains in which you and I travel in comfort in the Pullman cars—when that comes up I think of my feelings when I jumped from car to car on the top of that cattle train, and when a miss or slip meant the loss of a leg or an arm or the loss of my life, and I know how the brakeman feels in such a case. [Applause.]

THE JUDGES DON'T KNOW.

Now in New York those worthy, well-meaning, elderly judges of the court of appeals have never had such an experience in their lives.

They don't know. They don't visualize to themselves how that brakeman feels. They are not able to present to their minds the risks incident to the ordinary, everyday performance of his duties.

They don't know the brakeman. They don't know what it is—I am speaking of a case I know—they don't know what it means when a brakeman loses both legs, and the following winter—I am speaking of a case I know, my own personal experience—the following winter his wife

can't go out because she can't purchase shoes if she purchases shoes to send the children to school in. If they did visualize those facts to themselves, I know that they would entirely alter the course of their judicial decisions. They don't understand what the facts of the case are.

Now, this is simply as a preliminary, because I want you to know, to realize, that I have come to my present convictions as a result of having lived in the actual world of workaday men. I am not a sentimentalist. [Great applause.]

BELIEVES IN JUSTICE.

I am not a sentimentalist. If there is one quality I dislike as much as hardness of heart it is softness of head.

But I do believe in justice just as you believe in justice, and I am trying to get justice, and I am trying to get it for those who are less fortunate just as for those who are more fortunate. [Applause.]

Just wait. I want to give you just four or five cases of laws which the courts of Illinois and New York have declared unconstitutional. When I went into the legislature 30 years ago in New York, I was put on a committee to investigate the manufacture of cigars in tenement houses.

LIFE IN DESPAIR.

I remember well of one of them coming upon a room about 14 feet—16 feet, perhaps—square, in which two families lived, one of them with a boarder. Those two families, men, women, and children, worked and lived, day in and day out, night in and night out, there, at the manufacture of tobacco into cigars.

They lived in squalid filth, with the great sheets of tobacco in the bed clothing, under the beds, mixed up with stale food, put in the corners of the dirty room.

We got a bill through to put a stop to that kind of work, and the court of appeals declared it unconstitutional. Friends, there was this gem in the opinion.

The court said that it could not permit the legislature to interfere with the sanctity of home. [Laughter. A voice: “No home at all.”]

TAKES WORLD OF TIME.

It was not home at all, as you say, that squalid 16-foot room where those families lived day in and day out and worked day in and day out; and yet the court forbade us to try and improve those conditions, to try and make the conditions of tenement-house life so that it would be possible for decent men and decent women to live decently there and bring up their children as American citizens should be brought up.

Friends, it is idle for any man to ask me to sit unmoved and without protest when a court makes a decision like that [cries of “Good” and applause], and it is a waste of time to tell me, as Mr. Taft did in his speech, that I am laying an impious hand on the ark of the covenant when I try to secure the reversal of such a decision. [Laughter and applause.]

Now wait. I have only just begun. [Applause.] I am sorry for you, but I will get through as quick as I can. [Voices: “Go on, go on.”]

THE LAW THAT WAS PASSED.

Then we passed a law providing that in factories there should be safeguards over all the dangerous machinery, and a girl working in a factory had her arm taken off above the elbow by an unprotected flywheel. She sued and recovered damages, and the court of appeals of the State of New York threw out her case, and there was another gem in their opinion. They said that they would not permit the legislature to interfere with the liberty of that girl to work amidst dangerous machinery. [Laughter.]

Now you can see yourselves—you can look up. I will refer anyone who wants to look it up to the exact decisions where this language occurred.

The liberty of that girl was protected by the court—the liberty; she had the liberty to starve or to work under the conditions offered her, and she had no other liberty. [Applause.]

DREADFUL DENIAL OF JUSTICE.

And I hold that it was a dreadful denial of justice to prevent that poor girl from recovering for the accident due to the criminal carelessness of her employer, and I, for one, will never rest when there is a decision like that on the books until we have got it repealed. [“Good! Good!” and cheers.]

I could give you 20 such cases. I will only give you 2 more—only 2 more.

Then in the next case that came up that I refer to we passed a law, modeled on your Massachusetts law, a law forbidding women to be worked in factories more than 10 hours a day or after 9 o’clock at night.

Friends, personally, I thought that was an utterly insufficient law. I felt that it did not go nearly far enough. Your Massachusetts law prohibits them from working more than 9 hours a day and after 6 o’clock at night.

Ours did not go as far. It was with reluctance that I could make myself accept it at all. I did simply because it was the best we could get at that time.

At that time girls and women in factories, in sweatshops, were being worked 12, 14, sometimes 16 hours a day and until 10, 11, and 12 at night.

THE COURT’S BARRIER.

The Massachusetts court held that your law was constitutional; but our law, which did not go as far, the Court of Appeals of the State of New York held as unconstitutional, and there was this further gem in the language—the court said that there had been altogether too much legislation of this kind in the United States and the time had come for the court fearlessly to oppose the barrier of its judgment against it.

I love that word “fearlessly.” [Prolonged cheering.] Those amiable, well-meaning, excellently intentioned judges, who, doubtless, did not in their whole circle of acquaintances know one woman who was working in a factory or a sweatshop, said that they would stand “fearlessly” for what?

“Fearlessly” for the right of the big factory owner and the small sweatshop owner to earn their money by working women, haggard, hour after hour, day after day, night after night, in the factory and sweatshop.

Now, friends, do you know what my proposal is—this revolutionary proposal of mine [laughter], this proposal of mine that they say represents socialism and anarchy?

FOR THE 10,000,000.

My proposal is this: That in a case like that, the 10,000,000 people of the State of New York, to whom those 6 or 7 elderly, worthy, well-meaning men had said that they could not have justice—that those 10,000,000 people, after a time amply sufficient in which to come to a sober judgment, should be permitted to vote for themselves as to whether the Constitution, which they themselves had made, had been correctly interpreted by your court here in Massachusetts and the Court of Appeals in the State of New York. [Prolonged cheering.]

And if in a case like that the people are not intelligent enough to vote and say what they themselves meant when they made the Constitution, they are not intelligent enough to have made the Constitution in the first place. [Applause.]

THE COMPENSATION ACT.

One more case, only one more—two, perhaps. [Laughter.] We passed in New York a workmen's compensation act.

The Supreme Court of the United States, interpreting exactly the same language in the Constitution of the United States as the court of appeals interpreted in the constitution of the State of New York, and in reference to a practically exactly similar bill, decided that that law was constitutional.

The Court of Appeals of the State of New York decided that the Supreme Court of the United States was wrong [laughter] and that the law was not constitutional.

Now, I want you to listen to this sentence, because I haven't seen this fact brought out by any man yet.

“UNCONSTITUTIONALITY.”

At this moment in the State of New York if a New York brakeman is injured on a train going straight through across New York, from Boston to Chicago, he has a right to recover, it is constitutional for him to recover [laughter] for the injury.

But if his brother is working on a trolley in the same city in which he is injured on the railroad train, or if he is working on a railway train that only goes from Albany to Buffalo, then it becomes unconstitutional for him to recover. [Laughter and applause.]

ANARCHY OR JUSTICE.

Friends, it is idle to tell me that I have not the right to protest that the United States Supreme Court was right and the court of appeals wrong [applause]; and if I am an anarchist, I am an anarchist in company with the Supreme Court of the United States. [Applause and cheers.]

All I ask is that, in that kind of a case, the ten millions of people of New York State shall not be balked of justice, but, after ample time for due deliberation on their part, shall be permitted to vote in this case whether the Supreme Court of the United States and the State courts of a dozen other States, like Iowa and Washington, are right, or whether the amiable elderly gentlemen of the New York Court of Appeals are right.

I ask whether it be true that justice can not be given to the man crippled in industry in New York, although it can be given to him in the Nation, and in Iowa and in Washington, and in every civilized country abroad; whether it be true that the man can not have justice done him in New York, or whether we shall say to the judges of the Court of Appeals of New York, “No; we stand by the doctrines laid down by the Supreme Court of the Nation,” and given utterance to by the Massachusetts judge, Mr. Justice Holmes, in the Oklahoma bank case. “We say that the people have the right, in the exercise of the police power of the general-welfare clause of the Constitution”—I am using Mr. Holmes’s words, not mine—“that the people have the right to decide such cases in accordance with the common standard of morality, with the preponderance opinion of the citizenship of the community, and that the courts have to respect such opinion as the popular opinion as to what morality demands.” [Applause.]

I hold that if it be true—if it be true—that in this country fishers and plowmen and choppers are to constitute a State, it must be true that they shall be permitted to impose their ideas of common justice, of common decency, upon their public servants, and that the public servants are in very fact the servants and not the masters of the community. [Applause.]

THE BATTLE FOR JUSTICE.

Now, friends, I ask you of Massachusetts to stand in the front of the battle for justice and for righteousness as I have outlined. I wish that I could make the men who are best off in the community—the big corporation men, the big bankers, merchants, railroad men—understand that in this fight for justice we ought to have the right to expect them to lead.

FOR THE RIGHT.

Surely, friends, surely men of Massachusetts, if we are true to the Massachusetts ideals of the past, we will expect those to whom much has been given to take the lead in striving to get justice for their fellows to whom less has been given. [Applause.]

I want the men who are well off to give justice now because it is right, and not to wait till they have given justice simply because they fear longer to deny it. Justice! Let it come, because we believe in it. Let it not be forced upon us because we are afraid to deny it.

Nine-tenths of wisdom is being wise in time, and the proper way to conserve all of the present system of our civilization that is best worth conserving is to alter that which causes a heavy strain to come upon the rest.

I ask, at least, that we decline to commit ourselves to a policy of foolish Bourbonism; that instead of denying the need of any change in our laws, in our social and industrial system, to meet the changing needs of the times, we take the lead in making every change that is necessary in order to make our constitutions and the body of our law enacted under the Constitution instruments for justice as between man and man, instruments for getting justice for the average citizenship of the American Republic. [Applause.]

Friends, now you have heard me to-night and you can judge for yourselves. Am I preaching anarchy? Am I preaching socialism? [Cries of “No.”]

I am preaching elementary justice.

MISSOURI AND MASSACHUSETTS.

And now I ask you of Massachusetts to respond to the appeal contained in this telegram to me from Missouri, which says that the State convention of Missouri, representing the State, has refused all compromise and has sent a delegation to Chicago standing straight for me [great cheering] and for the cause that I represent.

And I ask you people of Massachusetts, you men of Massachusetts, on next Tuesday to put yourselves beside Illinois and Pennsylvania and Maine in the lead of the movement. [Great applause.]

O

Transcriber's Notes:

Punctuation and spelling inaccuracies were silently corrected.

Archaic and variable spelling has been preserved.

Variations in hyphenation and compound words have been preserved.

*** END OF THE PROJECT GUTENBERG EBOOK ADDRESS OF
HON. THEODORE ROOSEVELT, DELIVERED AT BOSTON, MASS.,
SATURDAY, APRIL 27, 1912 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.